

Case Summaries — 10 Orders (2026)

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Overview

ID	REPRESENTATION	PRIMARY SUBJECT	TRACK	DISPOSITION
OMB-001	C-19/2026	Assessment - Theft / Unauthorised use	THRESHOLD	Dismissed as not maintainable
OMB-002	C-20/2026	Metering - defective / assessment	THRESHOLD	Dismissed as not maintainable
OMB-003	C-25/2026	Billing - Electricity Duty	RELIEF	Directed compliance
OMB-004	23/2026	Franchisee / single-point recovery	THRESHOLD	Dismissed as withdrawn
OMB-005	15/2026	Supply reliability / hours / quality	THRESHOLD	Disposed with liberty
OMB-006	C-16/2026	Non-compliance of prior order	RELIEF	Disposed with liberty
OMB-007	13/2026	Metering - defective / assessment	RELIEF	Partly allowed
OMB-008	03/2026	Metering - defective / assessment	RELIEF	Partly allowed
OMB-009	17/2026	Billing - tariff / charges	RELIEF	Partly allowed
OMB-010	C-18/2026	Non-compliance of prior order	RELIEF	Directed compliance

OMB-001

THRESHOLD

Representation C-19/2026

MVVNL - LESA (Lucknow Electricity Supply Admin), EUDD-Mahanagar · Lucknow · 2026-06-30 (approx, from final hearing date; signature date OCR'd as illegible '2076-26') · before Sanjay Srivastava

Consumer: Smt. Shabina w/o Mohammad Rais (525-A/046, Sector-A, Mahanagar, Lucknow) — Domestic, Not stated · Direct-metered

SUMMARY

Smt. Shabina, a domestic consumer at Mahanagar, Lucknow, whose connection had been disconnected in February 2019 over an allegation of electricity theft, filed this representation complaining that the licensee (LESA) had not complied with an earlier Ombudsman order (Representation No. C-113/2020, dated 03.02.2024 per the Hindi text) which had directed that the licensee accept a compounding fee and finalise a revenue assessment under Section 126 of the Electricity Act once the consumer deposited it. She sought that the licensee be summoned and punished for contempt and that the bill be re-assessed under the U.P. Electricity Supply Code, 2005. The licensee's counsel objected that the underlying dispute concerned theft and unauthorised use of electricity, over which the CGRF and Electricity Ombudsman have no jurisdiction under the governing regulations. The Ombudsman agreed, holding that theft and theft-related assessment disputes fall under Sections 126/135 etc. of the Electricity Act and are expressly excluded from CGRF/Ombudsman jurisdiction by Regulation 4(4)(a) read with Regulation 5 of the 2007 Regulations and Clause 3.10(a) of the 2022 Regulations. Noting that the Rs. 8,000 compounding fee had in fact already been accepted by the licensee, the Ombudsman dismissed the representation as being outside its jurisdiction, leaving the consumer to pursue any further assessment dispute before the statutorily designated assessing officer, appellate authority, or Special Court.

सारांश (Hindi)

श्रीमती शबीना ने विद्युत चोरी के आरोप में काटे गए अपने संयोजन के राजस्व निर्धारण के पुनर्निर्धारण हेतु पूर्व लोकपाल आदेश के अनुपालन की माँग करते हुए यह अभ्यावेदन प्रस्तुत किया। लोकपाल ने पाया कि विद्युत चोरी व उससे सम्बन्धित निर्धारण के मामले विनियमावली 2007 के प्रस्तर 4(4)(क)/5 तथा विनियमावली 2022 के प्रस्तर 3.10(क) के अन्तर्गत लोकपाल के क्षेत्राधिकार से बाहर हैं, अतः अभ्यावेदन क्षेत्राधिकार के अभाव में खारिज कर दिया गया।

DECIDED ON

Maintainability - subject-matter jurisdiction → **Dismissed as not maintainable**

AMOUNT

No new amount quantified in this compliance petition; underlying theft-assessment compounding fee of Rs 8,000 (receipt no. 324529547797, OCR-doubtful) had already been paid by petitioner on a date OCR'd as '49-04-202' (approx. 19-04-2021) and accepted by the licensee prior to this filing.

U.P. ELECTRICITY SUPPLY CODE, 2005

- **unspecified (generic reference)** — Petitioner's representation repeatedly invokes 'U.P. Electricity Supply Code, 2005' as the source of re-assessment benefits owed to her, without citing any specific clause number.
- **unspecified (generic reference)** — Petitioner alleges the licensee 'willfully and knowingly flouted' the U.P. Electricity Supply Code, 2005, and separately asserts the assessing Executive Engineer 'is bound to follow the provision of the clause of' the Supply Code - again no clause number is given in either passage.

ALSO CITED

EA 2003 §42(5) · 42 · 126 · 127 · 128 · 135-139 · 143 · 152 · 161 · Regs UPERC (CGRF & Electricity Ombudsman) Regulations, 2007 - Regulation 4(4)(a): Ombudsman shall not hear matters covered by Regulation 5 · UPERC (CGRF & Electricity Ombudsman) Regulations, 2007 - Regulation 5: Forum shall not accept complaints relating to matters under the listed Electricity Act sections (theft/assessment bar list) · UPERC (Consumer Grievance Redressal Forum) Regulations, 2022 - Clause

3.10(a) (OCR renders it '3.0(a)'): forums shall not entertain complaints on assessment for unauthorised use, appeal in assessment, or theft of electricity/materials · Precedent —

RATIO

The Electricity Ombudsman and CGRF have no jurisdiction over disputes concerning assessment for theft or unauthorised use of electricity (Electricity Act ss.126/135 territory), by virtue of Regulation 4(4)(a) read with Regulation 5 of the UPERC (CGRF & Ombudsman) Regulations, 2007 and Clause 3.10(a) of the UPERC (CGRF) Regulations, 2022; such disputes lie exclusively before the statutory assessing officer, the s.127 appellate authority, or the Special Court.

theft-jurisdiction-bar forum-competence s142-noncompliance

Provenance: medium - Hindi portions are heavily garbled. The prior representation number (rendered variously as '773/2020' and '443/2020' in the Hindi narrative, and 'Petition No. 3/2020' in the petitioner's English pleading) is reconstructed here as 'C-113/2020' based on partial digit legibility ('Ui-t9'-style OCR pattern) and consistency with the CSV baseline; its order date conflicts across the document (Hindi text twice clearly reads '03-02-2024'; the English pleading reads '03.02.2021', i.e. possibly '2021'). The Act-section bar-list ('426,427,428,435 से 439,743,52,161') is reconstructed as EA ss.126-139/143/152/161 by pattern-matching to the standard theft/assessment jurisdictional-bar list used elsewhere in these regulations. The order's own signature date ('2076-26') is illegible and is approximated from the last recorded hearing date.

OMB-002

THRESHOLD

Representation C-20/2026

PVVNL (Paschimanchal) · Saharanpur · 2026-06-16 (approx; hearings concluded 11.06.2026 and order was reserved, exact decision date not legible in signature block) · before Sanjay Srivastava

Consumer: Maa Shakumbhari Plastic Udyog, Kumarhera, Dehradun Road, Saharanpur, through Proprietor Mr. Vipul Arora s/o Mr. Kisan Lal Arora — Industrial, Not stated (kVAH-metered; specific tariff category not named in the text) · Direct-metered (main meter + double-pole/check meter)

SUMMARY

Maa Shakumbhari Plastic Udyog, an industrial consumer at Saharanpur represented by its proprietor Vipul Arora, sought review/recall of the Ombudsman's earlier order dated 05.12.2025 (Representation No. 21/2025), which had upheld a licensee assessment of 200638 kVAH based on the difference between main and double-pole (check) meter readings for December 2019 to June 2020, while directing that no surcharge be levied given the licensee's own negligence in not taking regular readings. In this review petition the consumer argued that the pole meter's MRI report was never produced, that the pole meter's wire was found disconnected, and that the assessment was therefore an unsupported self-made presumption contrary to the U.P. Electricity Supply Code, 2005. The licensee (PVVNL) objected that the CGRF & Ombudsman Regulations contain no provision for review or recall of the Ombudsman's own orders, and that the application - filed roughly 120 days after the original order - raised nothing not already considered. Applying the review standard under Section 114 read with Order XLVII Rule 1 of the Code of Civil Procedure, 1908, the Ombudsman held that the facts now relied upon (including the meter-sealing certificate and the tabulated MRI comparison) had already been considered on pages 10-11 of the original order, and that no new evidence or error apparent on the record had been shown. The review/recall application was accordingly dismissed for want of merit/maintainability.

सारांश (Hindi)

मैसर्स मां शाकुम्भरी प्लास्टिक उद्योग, सहारनपुर द्वारा लोकपाल के दिनांक 05.12.2025 के आदेश, जिसमें मुख्य व डबल पोल मीटर की रीडिंग के अन्तर के आधार पर 200638 kVAH के निर्धारण को सही ठहराया गया था, के पुनर्विलोकन हेतु यह आवेदन प्रस्तुत किया गया। लोकपाल ने सिविल प्रक्रिया संहिता की धारा 114/आदेश 47 नियम 1 के मापदण्ड को लागू करते हुए पाया कि कोई नया तथ्य अथवा अभिलेख पर स्पष्ट त्रुटि नहीं दर्शाई गई, अतः पुनर्विलोकन आवेदन खारिज कर दिया गया।

DECIDED ON

Maintainability - procedure (limitation / review-power / form)
→ **Dismissed as not maintainable**

AMOUNT

Assessment based on a stated 200638 kVAH difference between main and double-pole meter readings (MRI reports, 01.12.2019-08.06.2020) upheld by the order under review; the party's own rejoinder elsewhere states '20638 kVAH' for the same figure (OCR/typo discrepancy - see ocr_confidence). No surcharge was levied on this assessment under the original order.

U.P. ELECTRICITY SUPPLY CODE, 2005

- **unspecified (generic reference)** — Representationist's review petition alleges the Executive Engineer 'did not follow the procedure prescribed in U.P. Electricity Supply Code, 2005' in raising the provisional/self-made kVAH assessment, without citing any specific clause number.

ALSO CITED

EA 2003 §— · Regs UPERC (CGRF & Electricity Ombudsman) Regulations (vintage/year not specified in text) - respondent's objection states these Regulations 'have no provision for recall or review' of the Ombudsman's own order · Code of Civil Procedure, 1908 - Section 114 read with Order XLVII Rule 1 (statutory review standard applied by analogy) · Precedent —

RATIO

A review/recall application before the Electricity Ombudsman must meet the standard under CPC s.114 read with Order XLVII Rule 1 (discovery of new and important evidence not producible earlier despite due diligence, or an error apparent on the face of the record); merely re-arguing facts already considered in the original order is not a valid ground, and the CGRF & Ombudsman Regulations contain no independent provision empowering the Ombudsman to recall or review its own order.

no-review-power

cpc-order-47-standard

finality-of-orders

Provenance: high (clean English typed OCR) - but two figures are doubtful: the assessed-units figure appears as '200638 kVAH' when the original order is quoted, and as '20638 kVAH' in the party's own paraphrase (one digit apparently dropped in one instance); and the exact order date is not recoverable from the garbled signature block ('..)\$.-0.6- 24'), so it is approximated from the last hearing date.

OMB-003

REACHED RELIEF

Representation C-25/2026

MVVNL (Madhyanchal), EDD-II Gauriganj (Tiloi) · Amethi · 2026-07-01 (approx, from hearing dates; exact signature date illegible) · before Sanjay Srivastava

Consumer: M/s Om Industries (rice mill), Village & Post Fursatganj, District Amethi, through Proprietor Sri Ram Babu s/o Sri Dwarika Prasad — Industrial, HV-2, 110 KVA (OCR-doubtful - source text shows '10 KVA'; Genus meter, Multiplying Factor-6; Account No. 7670234714 (doubtful), Book No. 01/HV02, Connection No. 38000867) · Direct-metered

SUMMARY

M/s Om Industries, a rice-mill proprietorship at Fursatganj, Amethi, holding an HV-2 industrial connection (sanctioned load OCR-doubtful, approx. 110 KVA) from Madhyanchal Vidyut Vitran Nigam, filed this representation alleging non-compliance with an earlier Ombudsman order (dated 27.05.2024, Representation No. C-490/2023), which itself required compliance with a Consumer Grievance Redressal Forum, Ayodhya judgment (dated 31.07.2023, Case No. 14/2021) directing re-assessment of the bill and extension of Electricity Duty (E.D.) exemption benefits under the U.P. Industrial Policy, 2004. The petitioner complained that despite repeated visits, the Executive Engineer had still not granted the E.D. refund. The licensee's written response showed that every direction of the CGRF order had been complied with except the E.D. exemption point, which required action by the Assistant/Deputy Director, Electrical Safety Directorate, U.P. (to which the licensee had duly referred the matter), and that the licensee could not be held responsible for that separate authority's delay. During the hearing, the licensee's counsel confirmed that the E.D. computation (approximately Rs. 5,85,439.30) had now been finalised and communicated to both the petitioner and the Electrical Safety Directorate on 27.06.2026, while the petitioner still owed a final permanent-disconnection bill of Rs. 5,988.20 that the Ombudsman had earlier found proper in its 27.05.2024 order. The Ombudsman disposed of the representation by directing the petitioner to deposit the outstanding Rs. 5,988.20 and to pursue the E.D. refund with the Electrical Safety Directorate, with the licensee directed to extend cooperation as needed.

सारांश (Hindi)

मैसर्स ओम इण्डस्ट्रीज (राइस मिल), फूर्सतगंज, अमेठी द्वारा पूर्व आदेश (सी-490/2023) के अनुपालन में, विशेषतः इलेक्ट्रिसिटी ड्यूटी (ई०डी०) की छूट न दिये जाने के सम्बन्ध में, यह अभ्यावेदन प्रस्तुत किया गया। लाइसेंसी ने बताया कि ई०डी० की गणना पूर्ण कर रुपये 5,85,439.30 की सूचना अभ्यावेदनकर्ता व विद्युत सुरक्षा निदेशालय को दे दी गयी है। लोकपाल ने अभ्यावेदनकर्ता को शेष पी०डी० बिल रुपये 5,988.20 जमा करने तथा ई०डी० की प्राप्ति हेतु आवश्यक कार्यवाही अविलम्ब करने का निर्देश देते हुए अभ्यावेदन निस्तारित किया।

DECIDED ON

Compliance / execution → **Directed compliance**

AMOUNT

Electricity Duty benefit/refund of approx. Rs 5,85,439.30 (licensee's computation communicated to petitioner and Electrical Safety Directorate on 27.06.2026); outstanding permanent-disconnection final bill of Rs 5,988.20 payable by petitioner.

U.P. ELECTRICITY SUPPLY CODE, 2005

- **unspecified (generic reference)** — Petitioner's representation asserts that the assessing Executive Engineer 'is bound to follow the provision of the clause of U.P. Electricity Supply Code, 2005' without identifying any specific clause number (identical boilerplate to OMB-001, filed by the same counsel, Mr. Mohammad Rafi Khan).

ALSO CITED

EA 2003 §42(5) · 42 · Regs — · Precedent —

RATIO

Where a CGRF order has been substantially complied with save for one item (here, an Electricity Duty exemption/refund under the Industrial Policy, 2004), the Ombudsman will not fault the licensee for delay attributable to a separate government authority (the Electrical Safety Directorate) to which the matter has been duly referred, but will direct the licensee to complete its own computation/communication of the benefit and direct the consumer to pursue the refund and clear outstanding dues, with mutual cooperation directed.

[electricity-duty-exemption](#)[industrial-policy-2004](#)[cgrf-order-compliance](#)[s142-enforcement](#)

Provenance: medium (mixed Hindi/English) - the sanctioned-load figure ('10 KVA', read as 110 KVA), the account number ('7670234714'), and the ombudsman's own order-date on the signature line ('....29: 7|1') are all OCR-doubtful; the case-registration date of the CGRF Ayodhya judgment ('31-07-2023', OCR sometimes '21-07-2028'/'3/-07-2028') is reconstructed by cross-checking repeated occurrences in the text.

OMB-004**THRESHOLD**

Representation 23/2026

PVVNL (Paschimanchal), EDD-III Loni, Ghaziabad (only 'Electricity Distribution Division-III, Loni' is explicitly named in this order; 'PVVNL' is inferred from district/geography) · Ghaziabad · 2026-07-07 · before Sanjay Srivastava

Consumer: Sri Alok Kumar @ Alok Sharma, husband of Akanksha Sharma (the registered owner), Flat No. A-508, OXY Homes, Bhopura, Loni Road, Ghaziabad — Domestic, Not stated (order does not name a tariff category; supply is via a society prepaid sub-metering arrangement) · Single-point / deemed-franchisee (prepaid sub-metering, operated by the Apartment Owners Association/builder)

SUMMARY

Sri Alok Kumar, husband of the registered flat owner Smt. Akanksha Sharma and a continuous resident of OXY Homes society, Ghaziabad since 2016, had complained before the Zonal CGRF, Loni that the Apartment Owners' Association and the builder/developer were operating a prepaid single-point electricity distribution system in breach of Clause 4.46(b)(i) of the U.P. Electricity Supply Code, 2005 - which requires deemed-franchisee arrangements to operate on a 'no profit no loss' basis - by recovering DG charges, maintenance, AMC charges and penalties through electricity billing. The CGRF dismissed the complaint solely on the ground that Alok Kumar, not being the named connection-holder, was not a 'consumer' under Section 2(15) of the Electricity Act, 2003. On appeal to the Ombudsman under Section 42(6), the appellant argued that a beneficial user/occupier and family Karta qualifies as a 'consumer', relying on the NCDRC decision in Hari Chand v. Haryana Vidyut Prasaran Nigam Ltd., and sought a merits remand along with a forensic audit and a refund with 18% interest. Rather than pressing the appeal to a decision, however, the appellant's counsel filed an application at the next hearing seeking to withdraw the representation with liberty to file a fresh complaint before the CGRF in the name of the registered owner. The Ombudsman allowed the withdrawal and dismissed the case as withdrawn, granting liberty to refile before the CGRF, Loni, with a proper party name, leaving the consumer-definition and no-profit-no-loss questions undecided on the merits.

सारांश (Hindi)

ओ०एक्स०वाई० होम्स सोसाइटी, गाजियाबाद के निवासी श्री आलोक कुमार ने प्रीपेड बिजली वितरण व्यवस्था में डी०जी०, रखरखाव व अन्य शुल्कों की अनियमित वसूली के विरुद्ध सी०जी०आर०एफ०, लोनी के समक्ष परिवाद दाखिल किया था, जिसे इस आधार पर खारिज कर दिया गया कि आलोक कुमार विद्युत अधिनियम की धारा 2(15) के अन्तर्गत 'उपभोक्ता' नहीं हैं। लोकपाल के समक्ष अपील के दौरान अभ्यावेदनकर्ता के अधिवक्ता ने अपील वापस लेने का आवेदन दिया, जिसे स्वीकार करते हुए लोकपाल ने पंजीकृत स्वामी के नाम से सी०जी०आर०एफ० में पुनः परिवाद दाखिल करने की छूट के साथ मामला निस्तारित कर दिया।

DECIDED ONWithdrawal → **Dismissed as withdrawn****AMOUNT**

Refund of alleged unauthorised
DG/maintenance/AMC/vending-charge over-recovery collected
via prepaid electricity billing, plus compound interest at 18%
per annum - amount unquantified in the pleadings.

U.P. ELECTRICITY SUPPLY CODE, 2005

- **4.46(b)(i)** — Petitioner's pleading: Respondents (Apartment Owners Association and builder), while operating the prepaid single-point electricity distribution mechanism as a deemed franchisee, are alleged to be recovering amounts above the tariff payable to the distribution licensee, in violation of Clause 4.46(b)(i), which mandates such systems operate strictly on a 'no profit no loss' basis.

- **4.46(b)(i)** — Recorded as acknowledged by the CGRF, Loni during proceedings below: under Clause 4.46(b)(i), a builder/deemed franchisee cannot derive profit from electricity distribution and may recover charges from residents only on a 'no profit no loss' basis, and fixed charges recovered cannot exceed what is paid to the distribution licensee.

ALSO CITED

EA 2003 §2(15) · 42 · 42(6) · Regs U.P. Electricity Regulatory Commission (Consumer Grievance Redressal Forum and Electricity Ombudsman) Regulations, 2022 - cited generally as the basis for the s.42(6) appeal · UPERC (Consumer Grievance Redressal Forum) Regulations, 2022 - a clause of these Regulations is cited in the CGRF Loni's own (severely OCR/font-corrupted) impugned order, apparently as 'Clause 3.12(9)' - this specific clause number is low-confidence and should be verified against the source PDF · UPERC (Consumer Grievances Redressal Forum) Regulations, 2022 - referenced in the Ombudsman's disposal, directing CGRF Loni to decide the fresh complaint per these Regulations · Precedent Hari Chand v. Haryana Vidyut Prasaran Nigam Ltd. (National Consumer Disputes Redressal Commission) - cited by petitioner for the proposition that an actual user/beneficiary of electricity supply may maintain proceedings even where the connection stands in another family member's name

RATIO

Where a CGRF has dismissed a complaint solely on the ground that the person complaining (here, the husband/occupier of the registered flat owner) is not a 'consumer' under Section 2(15) of the Electricity Act, 2003, and the appellant before the Ombudsman elects to withdraw the appeal rather than press the consumer-definition and Clause 4.46(b)(i) 'no profit no loss' issues, the Ombudsman will permit withdrawal with liberty to refile before the CGRF in the registered owner's name, leaving the substantive questions undecided.

consumer-definition-2(15)

deemed-franchisee-4.46

no-profit-no-loss

withdrawn-liberty

builder-society-recovery

Provenance: medium - the English portions (petitioner's pleading, Ombudsman's operative text) are clean, but the quoted CGRF, Loni order (originally in Hindi) is severely corrupted, apparently by a font-encoding failure rather than ordinary OCR noise, rendering it largely unreadable Latin-character gibberish; the '3.12(9)' regulation clause number attributed to that passage is a low-confidence reconstruction and should be checked against the source PDF.

OMB-005**THRESHOLD**

Representation 15/2026

MVVNL (Madhyanchal), EDD-Tanda · Ambedkar Nagar · 2026-07-09 (approx; last hearing 07.07.2026, order reserved, exact decision date not given) · before Sanjay Srivastava

Consumer: M/s J. K. Industries, through its proprietor Mrs. Seema Jaiswal, Belhari, Maharajganj, Akbarpur — Industrial, MV-6, 80 HP · Direct-metered (rural 11kV Ariya feeder, ex 33/11kV Surapur substation)**SUMMARY**

M/s J.K. Industries, a small hinge-manufacturing unit at Ambedkar Nagar supplied via a rural 11kV feeder under an 80 HP MV-6 industrial connection from MVVNL, complained that its daily electricity supply was drastically cut from about six hours to two hours from late 2020 onward despite repeated representations to district and corporate authorities, causing production losses which it quantified at Rs. 7.5 crore and which it says eventually forced closure of the unit (whose connection was later permanently disconnected in April 2023 over outstanding dues of Rs. 2,14,119). After the Allahabad High Court (Lucknow Bench) disposed of the proprietor's writ petition on 09.01.2026, on her own counsel's request to withdraw with liberty to approach the Electricity Ombudsman, she filed this representation seeking compensation and restoration of regular daytime supply. The licensee opposed the representation as not maintainable, contending that the Ombudsman has only appellate/supervisory jurisdiction over the CGRF and no original jurisdiction to entertain a fresh compensation claim, and that any such claim must first proceed under the compensation mechanism of the UPERC (Standards of Performance) Regulations, 2019. The Ombudsman agreed, holding that Clause 8.4.4 of the SoP Regulations, 2019 permits recourse to the Ombudsman only after the CGRF has failed to decide a compensation claim in time or the consumer is dissatisfied with the CGRF's decision, and that the High Court's grant of liberty did not itself confer jurisdiction the Ombudsman otherwise lacked. The representation was accordingly disposed of as not maintainable at this stage, with liberty granted to the Representationist to first pursue the CGRF-level SoP compensation remedy.

सारांश (Hindi)

मैसर्स जे०के० इण्डस्ट्रीज, अम्बेडकर नगर की एक लघु विनिर्माण इकाई ने ग्रामीण फीडर से मिलने वाली विद्युत आपूर्ति के घंटों में भारी कटौती (लगभग 6 घण्टे से 2 घण्टे) के कारण हुई क्षति हेतु 7.5 करोड़ रुपये के प्रतिकर की मांग करते हुए, उच्च न्यायालय की छूट पर यह अभ्यावेदन प्रस्तुत किया। लोकपाल ने पाया कि उसे केवल अपीलीय क्षेत्राधिकार प्राप्त है तथा प्रतिकर हेतु पहले सी०जी०आर०एफ० स्तर पर मानक निष्पादन विनियमावली, 2019 के खण्ड 8 के अन्तर्गत उपचार अपनाना अनिवार्य है, अतः अभ्यावेदन इस स्तर पर पोषणीय नहीं मानते हुए उचित उपचार अपनाने की छूट के साथ निस्तारित किया गया।

DECIDED ON

Maintainability - hierarchy / exhaustion → **Disposed with liberty**

AMOUNT

Compensation claimed: Rs 7,50,00,000 (Rs 7.5 crore) for business losses attributed to reduced daily supply hours (approx. six hours reduced to two hours from late 2020); licensee counter-asserts outstanding dues of Rs 2,14,119 that led to permanent disconnection on 24.04.2023.

U.P. ELECTRICITY SUPPLY CODE, 2005

No specific clause cited (the order refers to the Supply Code only in general terms, or not at all).

ALSO CITED

EA 2003 §142 · 181(1) · 181(2)(za) · 181(2)(zb) · Regs UPERC (Standards of Performance) Regulations, 2019 - Clause 8 (detailed compensation mechanism and claim process) · UPERC (Standards of Performance) Regulations, 2019 - Clause 8.4.4 (consumer may approach Electricity Ombudsman only if CGRF fails to decide compensation in time, or consumer is dissatisfied with CGRF's decision; Ombudsman's decision is final; non-compliance route is s.142 to the Commission) · Precedent —

RATIO

The Electricity Ombudsman exercises only appellate/supervisory jurisdiction over the CGRF and has no original jurisdiction to entertain a compensation claim in the first instance; under Clause 8.4.4 of the UPERC (Standards of Performance) Regulations, 2019, a consumer seeking compensation for deficient standards of performance (such as irregular supply hours) must first invoke the CGRF-level mechanism under Clause 8, and may approach the Ombudsman only if the CGRF fails to decide within the specified time or the consumer is dissatisfied with its decision; a High Court order granting 'liberty to approach the Ombudsman' does not by itself confer jurisdiction the Ombudsman otherwise lacks.

- no-original-jurisdiction
- appellate-only
- exhaust-cgrf-first
- sop-compensation-clause8
- hc-liberty-no-jurisdiction
- supply-hours

Provenance: high (clean English typed OCR throughout) - the compensation figure (Rs 7.5 crore), outstanding-dues figure (Rs 2,14,119), and regulation clause numbers are all consistently and clearly rendered with no evident digit ambiguity.

OMB-006

REACHED RELIEF

Representation C-16/2026

KESCO · Kanpur Nagar · 2026-04-27 (approx) · before Sanjay Shrivastava

Consumer: Manoj Garg s/o late V.N. Garg — Unknown, Not stated · Unknown**SUMMARY**

The petitioner sought action under Section 142 of the Electricity Act, 2003 for non-compliance of a CGRF (KESCO) order that had awarded Rs. 7,500 compensation for delay in processing his permanent disconnection request and security-deposit refund, in violation of the SoP Regulations, 2005. During the Ombudsman proceedings, KESCO confirmed payment of the compensation by cheque, though the petitioner's representative raised doubts about the manner of delivery of the cheque. Finding that compliance had been made, the Ombudsman disposed of the representation, leaving the licensee free to take any departmental action under the SoP Regulations regarding the delivery irregularity.

सारांश (Hindi)

अभ्यावेदनकर्ता ने फोरम, केस्को द्वारा पारित रु0 7,500/- क्षतिपूर्ति के आदेश के अनुपालन हेतु धारा 142 विद्युत अधिनियम के अन्तर्गत अभ्यावेदन प्रस्तुत किया। विपक्षी द्वारा चेक के माध्यम से क्षतिपूर्ति का भुगतान किये जाने की पुष्टि पर, विद्युत लोकपाल ने अभ्यावेदन निस्तारित कर दिया।

DECIDED ONCompliance / execution → **Disposed with liberty****AMOUNT**

Rs. 7,500 (SoP Regulations compensation ordered by CGRF; only compliance, not quantum, was in issue)

U.P. ELECTRICITY SUPPLY CODE, 2005

- **4.38** — Final/PD bill must issue within prescribed time after permanent-disconnection request

ALSO CITED

EA 2003 §Section 142, Electricity Act 2003 · Regs UPERC Standard of Performance Regulations, 2005 (Clause 8 - compensation for delay) · Precedent —

RATIO

Where the licensee demonstrates that a CGRF compensation order has in fact been complied with, the s.142 representation for penal action is disposed of, with liberty to the licensee to independently examine any irregularity in the mode of compliance.

s142-noncompliance

sop-compensation-clause8

cgrf-order-compliance

OMB-007

REACHED RELIEF

Representation 13/2026

KESCO · Kanpur Nagar · 2026-04-23 (approx) · before Sanjay Shrivastava

Consumer: Raju Chadha s/o Bal Krishna Chadha — Industrial, LMV-6, 55 HP · Direct-metered**SUMMARY**

The petitioner, an LMV-6 industrial consumer, challenged a CGRF order that had upheld a Rs. 6,96,824 slow-meter assessment (based on MRI data showing carbonized CT/PT wires) recoverable in five interest-free instalments, arguing he was denied the MRI/assessment details needed to object and that the licensee never conducted the annual meter checks required by clause 5.5(b)(ii) of the Supply Code. The Ombudsman found the licensee had indeed been negligent in periodic checking and had also mis-applied the tariff rate, and directed issuance of a corrected bill of Rs. 6,40,198. The representation was disposed of with the corrected amount payable in five interest-free instalments, plus directions to replace the defective pole meter and proceed departmentally against the negligent staff.

सारांश (Hindi)

अभ्यावेदनकर्ता ने फोरम द्वारा अनुमोदित रु0 6,96,824/- के धीमी मीटर निर्धारण को चुनौती दी, यह तर्क देते हुए कि विपक्षी ने वार्षिक जाँच (प्रस्तर 5.5(b)(ii)) नहीं की। विद्युत लोकपाल ने टैरिफ त्रुटि सुधारते हुए निर्धारण घटाकर रु0 6,40,198/- कर पाँच किश्तों में जमा करने तथा पोल मीटर बदलने का आदेश दिया।

DECIDED ONMerits → **Partly allowed****AMOUNT**

Rs. 6,96,824 MRI-based slow-meter assessment (85,855 kVAH; connection no. 2504220000), revised to Rs. 6,40,198 after tariff-rate correction; payable in 5 monthly instalments

U.P. ELECTRICITY SUPPLY CODE, 2005

- **5.5(b)(ii)** — Annual meter-check duty; licensee's lapse caused prolonged back-assessment
- **5.5(b)(i)-(iv)** — Petitioner alleged breach of periodic meter/pole-meter verification sub-clauses

ALSO CITED

EA 2003 § — · Regs — · Precedent —

RATIO

Where a licensee fails its clause 5.5(b)(ii) duty of annual meter verification, resulting in a prolonged slow-meter back-assessment, the assessment is not quashed but corrected for genuine errors (here, tariff rate) and eased into interest-free instalments, with accountability fixed on the licensee's negligent staff.

slow-meter-assessment

mri-based-billing

meter-check-lapse-5.5b

tariff-rate-correction

pole-meter-defect

OMB-008

REACHED RELIEF

Representation 03/2026

KESCO · Kanpur Nagar · 2026-04-27 (approx) · before Sanjay Shrivastava

Consumer: N.K. Gupta s/o S.R. Gupta — Industrial, LMV-6, 12 HP · Direct-metered

SUMMARY

The petitioner, an LMV-6 industrial consumer, challenged a CGRF order upholding a Rs. 2,93,125 slow-meter assessment (Y-phase PT found carbonized, no pole meter installed) recoverable in five interest-free instalments, contending he was never given the MRI data or a chance to object and that the licensee had not checked the meter for about 9 years, contrary to clause 5.5(b)(iii) of the Supply Code requiring checks every two years. On the Ombudsman's direction, the licensee reworked its calculation to use actual/average fault-period data instead of assuming continuous Y-phase failure throughout, reducing the assessed bill to Rs. 2,13,034. The representation was disposed of with the reduced amount payable in five interest-free instalments, plus directions to install a pole meter and proceed departmentally against the negligent staff.

सारांश (Hindi)

अभ्यावेदनकर्ता ने फोरम द्वारा अनुमोदित रु0 2,93,125/- के धीमी मीटर निर्धारण को चुनौती दी, यह तर्क देते हुए कि विपक्षी ने प्रस्तर 5.5(b)(iii) के अनुसार दो वर्ष में एक बार होने वाली जाँच लगभग 9 वर्षों तक नहीं की। न्यायालय के निर्देश पर पुनर्गणना के बाद निर्धारण घटाकर रु0 2,13,034/- कर पाँच ब्याज-रहित किश्तों में जमा करने तथा पोल मीटर लगाने का आदेश दिया गया।

DECIDED ON

Merits → **Partly allowed**

AMOUNT

Rs. 2,93,125 MRI-based slow-meter assessment (~44,503 kVAH per licensee's prose; table shows truncated '4503'), reviewed down to ~Rs. 2,13,034 (~30,163 kVAH); payable in 5 monthly instalments of ~Rs. 42,607

U.P. ELECTRICITY SUPPLY CODE, 2005

- **5.5(b)(ii)** — Cited re pre-check proof and MRI/pole-meter copy withheld from consumer
- **5.5(b)(iii)** — Biennial check duty; approx 9-year gap held gross licensee negligence

ALSO CITED

EA 2003 § — · Regs — · Precedent —

RATIO

Where a licensee's periodic meter-verification lapse (here, ~9 years against the clause 5.5(b)(iii) biennial norm) leads to a prolonged back-assessment, the assessment must be recomputed on a defensible basis (actual/average fault-period data, not a blanket continuous-fault assumption) rather than being wholly annulled or mechanically upheld, with recovery eased into interest-free instalments.

slow-meter-assessment

mri-based-billing

meter-check-lapse-5.5b

assessment-methodology-correction

pole-meter-defect

OMB-009

REACHED RELIEF

Representation 17/2026

PuVVNL (inferred from district; not named in text) · Varanasi · 2026-04-23 (approx) · before Sanjay Srivastava (Vidyut Lokpal, Uttar Pradesh)

Consumer: [Name OCR-corrupted, rendered 'Gay Kumar' / 'GANT Kumar'] s/o Antu, Village & Post Suswahi, PS Lanka, Varanasi — Commercial, Not stated, 4 KW (as stated; OCR digit uncertain) · Direct-metered

SUMMARY

The petitioner's commercial connection in Varanasi was disconnected in March 2016 over unpaid dues of Rs 56,489, and his complaint before CGRF Varanasi was dismissed in 2024 for want of prosecution under Regulation 5.4. On appeal, the Ombudsman examined the licensee's revised bill (Rs 70,016, including a Clause 4.38(ii) surcharge of Rs 9,657) and declined to waive the surcharge, but directed that a 2017 OTS deposit and a security deposit be credited, fixing final payment at about Rs 44,216.

सारांश (Hindi)

याची के वाराणसी स्थित व्यावसायिक कनेक्शन को मार्च 2016 में बकाया न चुकाने पर विच्छेदित किया गया था, और उसका परिवार विनियम 5.4 के तहत रुचि न लेने के कारण फोरम द्वारा 2024 में खारिज कर दिया गया था। लोकपाल ने अपील में सरचार्ज (खण्ड 4.38(ii)) माफ करने से इनकार करते हुए ओ.टी.एस. व प्रतिभूति राशि समायोजित कर अन्तिम भुगतान लगभग रु. 44,216 नियत किया।

DECIDED ON

Merits → **Partly allowed**

AMOUNT

Rs 46,246 post-disconnection bill balance (Rs 60,359 revised bill + Rs 9,657 Clause-4.38(ii) surcharge, less Rs 24,100 already paid + Rs 300 disconnection fee); final payment fixed at ~Rs 44,216 after OTS/security-deposit credit.

U.P. ELECTRICITY SUPPLY CODE, 2005

- **4.37(a)** — Bill revision & permanent disconnection after unpaid dues (also cited as '4.37')
- **4.38(ii)** — Surcharge on revised bill; held non-waivable by Ombudsman

ALSO CITED

EA 2003 §— · Regs UPERC (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations (First Amendment), 2019 - Regulation 5.4 · Precedent —

RATIO

Once a post-disconnection bill is revised under Clause 4.37(a) and surcharge levied under Clause 4.38(ii), the surcharge is statutorily fixed and cannot be waived by the Ombudsman. However, amounts already deposited under a prior One-Time-Settlement scheme and security deposit reflected in the bill must be credited against the outstanding balance.

surcharge-non-waivable post-disconnection-billing ots-adjustment

OMB-010

REACHED RELIEF

Representation C-18/2026

MVVNL (stated in order body, p.4; case caption itself gives only the division) · Bareilly · 2026-04-30 (approx) · before Sanjay Srivastava (Vidyut Lokpal, Uttar Pradesh)

Consumer: Smt. Sanobar Wasim w/o Sri Mukhtar Wasim, 288 Kishore Bazaar, Biharipur, PS Kotwali, Bareilly — Unknown, Not stated · Unknown

SUMMARY

The petitioner sought enforcement of a Bareilly CGRF order (19-03-2025) directing the licensee to pay Rs 3,330 compensation for a 666-day delay in releasing her new connection and to penalize the responsible official. On notice, the licensee (MVVNL) confirmed payment was being processed pending her Aadhaar and bank details, and that salary-recovery action against the erring employee was underway, so the representation was disposed of. The Ombudsman separately held that the underlying complaint had been wrongly entertained by the Zonal (Chief Engineer)-level forum instead of the Company-level forum required for Standard-of-Performance complaints under the 2022 CGRF Regulations.

सारांश (Hindi)

याची ने बरेली फोरम के आदेश दिनांक 19-03-2025 (नए कनेक्शन में 666 दिन विलम्ब हेतु रु. 3,330 क्षतिपूर्ति) के अनुपालन हेतु अभ्यावेदन दिया, जिस पर लाइसेंसी (मध्यांचल विद्युत वितरण निगम) ने आधार व बैंक विवरण मिलते ही भुगतान तथा दोषी कर्मचारी पर कार्यवाही का आश्वासन दिया, अतः अभ्यावेदन निस्तारित किया गया। लोकपाल ने यह भी निर्देशित किया कि स्टैंडर्ड ऑफ परफॉरमेंस परिवाद भविष्य में केवल कम्पनी-स्तर फोरम में ही सुने जायें, जोनल-स्तर फोरम में नहीं।

DECIDED ONCompliance / execution → **Directed compliance****AMOUNT**

Rs 3,330 Standard-of-Performance compensation (Rs 5 per Rs 1,000 deposited x 666 days' delay in new-connection release) ordered by CGRF Bareilly on 19-03-2025; payment pending at filing.

U.P. ELECTRICITY SUPPLY CODE, 2005

No specific clause cited (the order refers to the Supply Code only in general terms, or not at all).

ALSO CITED

EA 2003 §Electricity Act 2003, Section 142 · Regs UP Electricity Regulatory Commission (CGRF & Electricity Ombudsman) Regulations, 2007 - Para 4 · UPERC (Standard of Performance) Regulations, 2009 · UPERC (Consumer Grievance Redressal Forum) Regulations, 2022 · Precedent —

RATIO

A non-compliance representation against a Zonal-level CGRF's Standard-of-Performance compensation order is disposed of by confirming the licensee's payment undertaking, without disturbing the earlier order. The Ombudsman nonetheless directed that, prospectively, Standard-of-Performance complaints be heard only by Company-level CGRFs under the UPERC (CGRF) Regulations, 2022, not Zonal-level forums.

s142-noncompliance

cgrf-order-compliance

forum-competence

sop-compensation